

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #6	CCRB Case #: 201903998	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/30/2019 10:10 PM	Location of Incident: Ocean Parkway and Avenue Z	Precinct: 61	18 Mo. SOL 10/30/2020	EO SOL 6/16/2021	
Date/Time CV Reported Tue, 04/30/2019 10:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/09/2019 11:09 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Warfield	11222	962159	060 PCT
2. POM Alan Lee	12637	961881	060 PCT
3. Officers			

Officer(s)	Allegation	Investigator Recommendation
A.POM Alan Lee	Force: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Alan Lee used physical force against § 87(2)(b)	
B.POM Jonathan Warfield	Force: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Jonathan Warfield used physical force against § 87(2)(b)	
C. Officers	Force: At Ocean Parkway and Avenue Z in Brooklyn, officers used physical force against § 87(2)(b)	
D.POM Alan Lee	Abuse: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Alan Lee searched the vehicle in which § 87(2)(b) was an occupant.	
E.POM Jonathan Warfield	Abuse: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Jonathan Warfield searched the vehicle in which § 87(2)(b) was an occupant.	
F.POM Jonathan Warfield	Discourtesy: At the 60th Precinct stationhouse, Police Officer Jonathan Warfield spoke discourteously to § 87(2)(b)	

Case Summary

On April 30, 2020, § 87(2)(b) filed the following complaint with IAB under original log #2019-16935. The CCRB received the complaint on May 9, 2019. This case was closed pending litigation and re-opened on January 8, 2020.

On April 30, 2019, at approximately 10:10 p.m. PO Alan Lee and PO Jonathan Warfield of the 60th Precinct, stopped § 87(2)(b)'s vehicle at Avenue Z and Ocean Parkway in Brooklyn for a moving violation. § 87(2)(b) refused PO Lee's request for his license and registration and also refused to exit the vehicle. PO Lee then reached through the open window of the driver's door. PO Lee and PO Warfield, with the assistance of unidentified officers who responded, pulled § 87(2)(b) out of the vehicle (**Allegations A, B and C, Force, § 87(2)(g)**). After § 87(2)(b) was placed in a police vehicle, PO Lee and PO Warfield searched § 87(2)(b)'s vehicle for his driver's license that had fallen due to § 87(2)(b)'s removal from vehicle (**Allegations D and E, Abuse of Authority, § 87(2)(g)**). PO Lee then entered the vehicle and searched the center console and § 87(2)(b)'s jacket for his keys. PO Lee then parked the vehicle across the street (within allegation D). § 87(2)(b) was taken to the 60th Precinct stationhouse. As PO Warfield escorted § 87(2)(b) to the front desk, § 87(2)(b) stated he was arrested for running a stop sign. PO Warfield replied, "No, for being an asshole," (**Allegation F, Discourtesy, § 87(2)(g)**).

§ 87(2)(b) was arrested for § 87(2)(b) (BR17). Twelve BWC videos were obtained for this incident (BR04-15). No other video footage was obtained for this incident. § 87(2)(g)

Findings and Recommendations

Allegation (A) Force: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Alan Lee used physical force against § 87(2)(b)

Allegation (B) Force: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Jonathan Warfield used physical force against § 87(2)(b)

Allegation (C) Force: At Ocean Parkway and Avenue Z in Brooklyn, officers used physical force against § 87(2)(b)

At 36 seconds of PO Lee's BWC on the video media player, PO Lee requested § 87(2)(b)'s license and registration (BR04). § 87(2)(b) gathered the documents and told PO Lee that he would provide them after he was told why he was stopped. At 3:15 minutes, PO Lee told § 87(2)(b) that he ran a stop sign and to exit the vehicle. At 3:26 minutes PO Lee reached his arm inside § 87(2)(b)'s vehicle, took one of the documents and tugged at § 87(2)(b)'s seatbelt. At 4:18 minutes, two arms were inside his vehicle and at 4:23 minutes PO Warfield reached through the driver's side window. PO Lee's arm was inside § 87(2)(b)'s vehicle at 4:43 minutes. PO Lee grabbed § 87(2)(b)'s left wrist at 4:55 minutes. PO Warfield held § 87(2)(b)'s left wrist in both his hands at 5:24 minutes. PO Lee entered the passenger's side door at 5:50 minutes. At 6:00 minutes, two unidentified officers assisted in handcuffing § 87(2)(b).

At 3:47 minutes on the video media player of PO Warfield's BWC (BR05) PO Lee reached through the open window of the driver's door, and felt along the inside of the door. At 5:30

minutes, an unidentified officer reached into § 87(2)(b)'s vehicle, opened the door and grabbed § 87(2)(b) by the wrist.

None of the other BWC footage captured an officer pull § 87(2)(b) out of his vehicle. Further all the BWC obtained for this incident belonged to officers of the 60th Precinct.

§ 87(2)(b) testified that PO Lee requested his identification, insurance and registration. § 87(2)(b) looked for these documents and asked why he was stopped. § 87(2)(b) confirmed that he held the documents in his hand despite PO Lee repeated requests to provide them. PO Lee and PO Warfield asked him to exit the vehicle. § 87(2)(b) told the officers he wanted to wait for a supervisor before he exited the vehicle. PO Lee and PO Warfield grabbed § 87(2)(b)'s wrists. PO Lee opened his vehicle door and PO Lee, PO Warfield and two additional unidentified officers pulled him out of his vehicle. § 87(2)(b) did not obtain the names of the additional officers. The officers did not use any additional force. § 87(2)(b) sustained scratches and bruises on his forearms, hands and wrists. He did not photograph his injuries nor seek medical treatment.

PO Warfield testified that he and PO Lee stopped § 87(2)(b) for failing to stop at a stop sign. PO Lee repeatedly requested § 87(2)(b)'s license, insurance and registration. § 87(2)(b) refused to provide the documents he held in his hand and demanded to know why he was stopped. PO Warfield moved to the driver's side. PO Lee and PO Warfield repeatedly asked § 87(2)(b) to exit, which he refused to do. The officers decided to remove § 87(2)(b) from the vehicle for their safety. PO Warfield feared for his safety because § 87(2)(b) refused to answer questions which usually suggested to him that someone has something to hide and could be hiding anything from weapon or a suspended license. PO Warfield and PO Lee reached into § 87(2)(b)'s vehicle to unlock the door. As they struggled to remove § 87(2)(b) two uniformed male officers, whom PO Warfield did not know, drove past and stopped to assist. One of the officers pushed a button inside § 87(2)(b)'s vehicle and opened § 87(2)(b)'s door and then the officers guided § 87(2)(b) out of the vehicle by grabbing his wrists and pulling him toward them. § 87(2)(b) stood up and was subsequently handcuffed and arrested.

PO Lee's testimony was largely consistent with PO Warfield's with the following exceptions. § 87(2)(b) also refused PO Warfield's request for his license and registration. When PO Lee could not unlock § 87(2)(b)'s door, he walked towards the passenger side, reached in and unbuckled § 87(2)(b)'s seatbelt. After they opened the driver's door, they pulled § 87(2)(b)'s arm towards him. § 87(2)(b) pulled back but otherwise did not do anything else with his body to resist. The officers pulled him out of the vehicle and pulled his arms behind his back because he would not provide his arms to the officers.

PO Warfield and PO Lee noted on their TRIs, numbers § 87(2)(b) and § 87(2)(b), respectively, that the only force they used was when they forcibly turned § 87(2)(b) to rear handcuff him (BR18 and 19).

When issuing a civil summons, an officer is to establish the violator's identity and mailing address through observation of valid identification documents. If they do not possess a valid form of identification, the officer is to remove the violator to the command, Patrol Guide Section 209-03 (BR20). A police officer may, as precautionary measure, and without particularized suspicion,

direct the occupants of a lawfully stopped vehicle to step out of the vehicle, People v. Garcia, 20 N.Y. 3d 317 (2012).

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Alan Lee searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: At Ocean Parkway and Avenue Z in Brooklyn, Police Officer Jonathan Warfield searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed the PO Lee entered § 87(2)(b)'s vehicle twice, approximately ten minutes apart.

At 10:41 minutes of the video media player of PO Lee's BWC, PO Lee reached through the window of the driver's door with some papers in hand and opened the door (BR04). He shined a flashlight around the driver's seat area, leaned into the vehicle and shined the flashlight around the front passenger's seat. PO Lee opened the front passenger's door and moved around some items, including a jacket on the passenger's seat at 11:28 minutes. It was not clear whether he searched the jacket. Then he opened the driver's door. At 20:11 minutes PO Lee said that he was going to park § 87(2)(b)'s vehicle. At 20:30 minutes, PO Lee opened the door to a police vehicle and asked if § 87(2)(b)'s brother, who was on scene, could take his vehicle. The answer was not audible. PO Lee told § 87(2)(b) that his two options were to have his brother take his vehicle or for him to park it there. Again, the answer was not audible, but PO Lee said, "Leave it here, alright," at 20:47 minutes. At 20:50 minutes § 87(2)(b)'s vehicle was parked next to a hydrant. PO Lee entered the driver's seat of § 87(2)(b)'s vehicle at 21:07 minutes. At 22:26 minutes he opened the center console. Then PO Lee exited the vehicle and approached a police vehicle. He asked where § 87(2)(b)'s keys were and was told they were in his jacket. At 23:09 minutes, PO Lee entered the front passenger's door entered § 87(2)(b)'s jacket. PO Lee opened the same door again at 24:10 minutes and exited at 24:15 minutes with something in his hand. PO Lee did not remove § 87(2)(b)'s jacket.

At 5:29 minutes in the video media player of PO Warfield's BWC, § 87(2)(b) held in his hand what appeared to be documents and a card (BR05). The video did not capture what happened to these items after he was removed from the vehicle. At 3:27 minutes, PO Warfield reached between the driver's seat, the center console and the gap between the left side of the seat and the door. PO Warfield obtained what appeared to be an identification card or license (BR08).

§ 87(2)(b) stated that after PO Lee grabbed his wrists, all the documents he held in his hands, along with the phone, fell out of his hands and to the floor of the vehicle. Approximately 20 minutes after § 87(2)(b) was placed in the police vehicle, PO Lee entered his vehicle and

searched it without permission. PO Lee entered through the driver's door and the passenger's door. While the door was open, § 87(2)(b) saw PO Lee look at the storage compartment on the door and saw him bend inside the vehicle.

PO Lee testified that he entered § 87(2)(b)'s vehicle to retrieve his driver's license which § 87(2)(b) dropped on the floor because they still needed it. PO Lee looked for § 87(2)(b)'s license in the immediate area of where he was seated in the vehicle. PO Lee did not remember seeing § 87(2)(b)'s jacket inside the vehicle. PO Lee asked PO Warfield to help him search the vehicle for the ID because he could not find it. PO Lee did not see where PO Warfield searched in the vehicle. PO Lee retrieved the license on the floor of the vehicle by where § 87(2)(b)'s feet would have been. Only § 87(2)(b)'s license and registration were taken from the vehicle. Upon viewing 22:26 minutes through 23:19 minutes of his BWC, PO Lee confirmed that he entered § 87(2)(b)'s vehicle. PO Lee confirmed that he searched for keys to move the vehicle.

PO Warfield testified that he entered § 87(2)(b)'s vehicle only to remove his driver's license from the vehicle. PO Warfield did not see PO Lee enter the vehicle other than to pull § 87(2)(b) out of the vehicle and unlock the vehicle. PO Warfield did not search § 87(2)(b)'s vehicle and he did not see another officer do so. Upon viewing 3:26 minutes through 3:46 minutes of his BWC, PO Warfield reiterated that the only reason he entered the vehicle was to retrieve the driver's license from in between the center console and the driver's seat.

§ 87(2)(b)'s keys, insurance and registration were vouchered under invoice number § 87(2)(b) for safekeeping (BR22).

In People v. Pollaci, 68, A.D. 2d 71 (1979), the court found that that the contemporaneous limited search of the vehicle was proper, both as an incident to the arrest, and under CPL 140.50 (BR27). Failure to exhibit license to any police officer shall be presumptive evidence that he is not duly licensed, Vehicle and Traffic Law Article 19 Section 507.2 (BR28). After an arrest has been affected and the prisoner handcuffed, have the vehicle, not required as evidence, safeguarded if appropriate, Patrol Guide Section 208-03 (BR25).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Allegation (F) Discourtesy: At the 60th Precinct stationhouse, Police Officer Jonathan Warfield spoke discourteously to § 87(2)(b)

Beginning at the 2:28 minute time stamp of the video media player of PO Warfield's BWC, § 87(2)(b) and PO Warfield walked past four police officers in the precinct stationhouse. § 87(2)(b) said, "For running a stop sign." PO Warfield escorted him to the front desk in the precinct stationhouse and at the 2:30 minute time stamp PO Warfield stated "No for being an asshole." When PO Warfield said this, he and § 87(2)(b) were in front of the front desk, behind which two officers were situated.

§ 87(2)(b) did not allege PO Warfield or any officer used profanity when speaking to him.

Upon viewing his BWC, PO Warfield confirmed he made the remark but that he may have directed it to an officer behind § 87(2)(b). PO Warfield did not remember if there were any officers around him when he entered the stationhouse with § 87(2)(b) and did not know why he used profanity.

DAO-DCT Case number 2017-17005 states that the tribunal has held that profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct (BR16). The NYPD is committed to accomplishing its mission by treating every citizen with compassion, courtesy, professionalism and respect. Officers pledge to value human life, respect the dignity of each individual and render our services with courtesy and civility, Patrol Guide Section 200-02 (BR26).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in six allegations (BR03).
 - § 87(2)(b)
- PO Warfield has been a member of service for three years and this is the first CCRB complaint to which PO Warfield has been a subject. § 87(2)(g)

- PO Lee has been a member of service for three years and has been subject in one other CCRB complaint and one allegation, which is still open. § 87(2)(g)

Mediation, Civil, Criminal History

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of March 17, 2020, the NYC Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR02).

Squad No.: 6

Investigator:	Whitney Beber Signature	Inv. Whitney Beber Print Title & Name	4/24/2020 Date
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Squad Leader: _____	Jessica Peña Signature	IM Jessica Peña Print Title & Name	4/27/2020 Date
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Reviewer: _____	Signature	Print Title & Name	Date
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